

## 24SMCV05392 24SMCV05392

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-06-23

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This case involves an auto accident. Plaintiff served discovery on November 24,

2025. Initial responses were served on

January 9, 2026, with verifications served on January 14, 2026. Supplemental responses were served on March

3, 2026, with verifications served on April 2, 2026. (The court notes that it is probably not a

great practice to have the verifications served after the responses.) Plaintiff states that the supplemental

responses are still not satisfactory.

Plaintiff sent a meet and confer letter, but defendant has not changed

the responses. Plaintiff seeks an order

compelling responses. In opposition,

defendant contends that the motion is not proper. In part, defendant states that these are not

motions to compel, but rather motions to compel further. The requirements are different. For example, there is a meet and confer

requirement for motions to compel further, and they must be accompanied by a

separate statement. (The court notes

that the difference matters to the court for another reason: this is how the

court keeps its calendar in an orderly way.

Mis-designating the type of motion has an effect on the court's work

flow.) Defendant also suggests that the

meet and confer was not adequate because it was based on letters only. In reply, plaintiff states that the

opposition was late (the court does not believe it was), and that the type of

motion elevates form over substance.

Plaintiff also states that the meet and confer is satisfactory because

defendant never demanded a telephone call.

The court agrees with the defense. The type of motion matters, and this is a

case where the separate statement would have been helpful. The court also notes that the statute imposes

a requirement that the meet and confer include an actual conversation, not just

an exchange of letters. In short, the

motion is not proper, and it is DENIED for that reason.

The defense seeks an award of sanctions. The court will inquire. Plaintiff's motion is plainly procedurally

ill-taken. The question in the court's

mind is whether defense counsel called up plaintiff to point that out before

starting to work on the opposition. If

so, and plaintiff refused to take the motion off calendar, the court would be

inclined to GRANT the motion in the amount of \$4275 against plaintiff and

plaintiff's counsel payable to defense counsel within 30 days. If the call was not made, the court would be

inclined to GRANT the motion for sanctions in the amount of \$250 against

plaintiff and plaintiff's counsel, payable to defense counsel within 30

days. The court notes that plaintiff's

points about the objection are somewhat well taken, but that defendant did, for

the most part, provide substantive responses.